

Person Filing: Rosa Elena Villanueva
Address (if not protected): 1420 East Roosevelt Street, Unit 5
City, State, Zip Code: Phoenix, AZ 85006
Telephone: 602-555-0146
Email Address: r.villanueva@example.com
Representing ☐ Self or ☐ Lawyer for _____
Lawyer's Bar Number: _____

For Clerk's Use Only

COURT OF ARIZONA
IN Maricopa **COUNTY**

STATE OF ARIZONA

Case Number: CR2016-114872-001

-vs-

Rosa Elena Villanueva
Defendant (FIRST, MI, LAST)

**APPLICATION FOR CERTIFICATE
OF SECOND CHANCE**

A.R.S. § 13-905

Date of Birth: _____

Applicant is:

☐ Defendant

☐ Attorney for Defendant

The Defendant in the case identified above hereby requests a Certificate of Second Chance pursuant to A.R.S. § 13-905.

☐ Defendant is eligible for a Certificate of Second Chance because Defendant previously received a set aside order on _____ in this case that did not include a Certificate of Second Chance.

☐ Defendant DID NOT previously receive a Certificate of Second Chance on the set aside of a felony conviction.

Please note: To qualify for a Certificate of Second Chance, those applicants who were convicted of a class 4, 5, or 6 felony must wait to submit an application until two years after fulfilling the conditions of probation or sentence. Those applicants who were convicted of a class 2 or 3 felony must wait five years after fulfilling the conditions of probation or sentence. Applicants convicted of a misdemeanor may immediately apply.

CONVICTION(S) IN THIS CASE

A Judgment of Guilt was entered in this Court against the defendant on the _____ day of _____, _____, on the conviction of:

Count I: _____

Count II: _____

Count III: _____

Count IV: _____

[] Additional counts continue on a separate page.

I understand that this application may be denied if information in this application is found to be inaccurate.

I declare under penalty of perjury that, to the best of my knowledge, the information provided in this application and any attachments is true and correct.

Print Defendant's Name

Defendant's Signature

1420 East Roosevelt Street, Unit 5, Phoenix, AZ 85006

Address

OR

AUTHORIZATION TO PROCEED ON BEHALF OF DEFENDANT

I authorize my Attorney _____ to file this application for a Certificate of Second Chance with the Court.

Date

Defendant's Signature

To the best of my knowledge, the information provided in this application is true and correct.

Print Attorney Name

Attorney Signature

Attorney Address

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_____**COURT OF ARIZONA**
IN Maricopa **COUNTY**

STATE OF ARIZONA

Case Number: CR2016-114872-001

-vs-

**ORDER REGARDING
APPLICATION FOR CERTIFICATE
OF SECOND CHANCE**

Defendant (FIRST, MI, LAST)

A.R.S. § 13-905

Date of Birth: _____

Based on the information presented to the Court, **THE COURT FINDS:** (only those items marked)

- ☐ The prosecutor has received a copy of the Application for Certificate of Second Chance.
- ☐ The defendant **has not met** the statutory requirements for the application.
- ☐ The defendant **has met** the statutory requirements for the application.

IT IS ORDERED:

- ☐ DENYING the application for a Certificate of Second Chance for the following reasons:

- ☐ The applicant **has not met** the statutory requirements for the application (as noted above):

- ☐ Other reasons: _____:

- ☐ GRANTING the application for a Certificate of Second Chance pursuant to A.R.S. § 13-905.

DATED this _____ day of _____, _____.

Judicial Officer